



FSCA Ref: 1-370127 | Factual Update: Section 162 Application & Governance Failures | AfroCentric Investment Corporation Limited (ACT)

1 message

Wilbur William Matthee <info@ethichawks.co.za>
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Fri, 20 Mar 2026 at 11:34

Dear Commissioner / Legal Officer,

RE: FACTUAL UPDATE REGARDING FSCA CASE REF: 1-370127

Please find attached a formal factual update regarding the existing FSCA complaint file (Ref: 1-370127) for AfroCentric Investment Corporation Limited (JSE: ACT) and its subsidiary, Medscheme Holdings (Pty) Ltd.

As the Applicant in these proceedings, I am placing the following urgent developments on record for the Authority's assessment:

High Court Filing: On 19 March 2026, an urgent Section 162 Director Delinquency Application was filed with the High Court (Western Cape Division) under Filing Reference HCGS951842.

Internal Control Failures: The application documents the executive de-escalation of a protected disclosure and the written suppression of a Priority 1 Material Risk Report by the Chief Risk Officer on 18 December 2025.

Forensic Payroll Discrepancies: Evidence has been submitted regarding a discrepancy in salary declarations to SARS/UIF in July 2025, raising concerns about the accuracy of statutory declarations by a regulated entity.

Market Disclosure Concerns: I note that a SENS announcement regarding a Sanlam transaction was released on 18 March 2026. I have placed this factual sequence on record for the FSCA's assessment, as neither the pending High Court application nor the active B-BBEE Commission investigation (Case No. 5/02/2026)—which carries an estimated R580 million exposure—appeared to be disclosed in that announcement.

I am available to provide the full High Court application bundle, including the Founding Affidavit and Notice of Motion, upon request.

Yours faithfully,

Wilbur William Matthee
RN, BTech (Psych, Midw, Comm (R425)), PG Dip HSM (NQF 8)

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